

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF NEBIYERIDZE AND OTHERS v. RUSSIA

(Applications nos. 41505/17 and 30 others –
see appended list)

JUDGMENT

STRASBOURG

1 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Nebiyeridze and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of country-wide protests against corruption organised by Aleksey Navalnyy on 26 March 2017 (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 2, 4 October 2022). Some applicants also raised other complaints under the provisions of the Convention and the Protocols thereto.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications

(see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17,

§§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences ("the CAO"); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect on an appeal against the sentence of detention.

V. REMAINING COMPLAINTS

14. Some applicants also raised other further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others*, cited above, § 22), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and *declares* the remainder of the applications inadmissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	41505/17 11/05/2017	**Vitaliy Otariyevich NEBIYERIDZE** 1968		Sochi	Article 20.2 § 2 of CAO	detention for 8 days	Krasnodar Regional Court 31/03/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
2.	53791/17 17/07/2017	**Stanislav Vladimirovich BABANOV** 1992	Terekhov Konstantin Ilyich Moscow	Volgograd	Article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 19/04/2017		3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	79023/17 09/11/2017	**Sergey Vladimirovich ANDREYEV** 1978	Terekhov Konstantin Ilyich Moscow	Almetyevsk	Article 20.2 § 2 of CAO	fine of RUB 20,000	Supreme Court of the Tatarstan Republic 02/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
4.	79374/17 02/11/2017	**Ilya Vladimirovich KOROBKOV** 1986	Gaynutdinov Damir Ravilevich Sofia, Bulgaria	Ekaterinburg	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 03/05/2017		3,500
5.	607/18 07/12/2017	**Mikhail Aleksandrovich IOSILEVICH** 1976	Glukhov Aleksey Vladimirovich Novocheboksarsk	Nizhniy Novgorod	Article 20.2 § 5 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2 p.m., brought to the police station and released at 6 p.m. on 26/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	2564/18 07/12/2017	**Boris Mikhaylovich ZOLOTAREVSKIY** 1997	Sholokhov Igor Nikolayevich Kazan	Chelyabinsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Chelyabinsk Regional Court 21/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	2571/18 08/12/2017	**Artem Sergeyevich AGANIN** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Nizhniy Novgorod	Article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 15/06/2017	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.10 p.m., brought to the police station and released at 6 p.m. on 26/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	3683/18 08/01/2018	**Yevgeniy Igorevich GERASIMOV** 1984	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
9.	3685/18 08/01/2018	**Pavel Nikolayevich FISENKO** 1979	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
10.	3687/18 08/01/2018	**Emil Narimanovich ASANOV** 1991	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								report was compiled (brought to the police station at 10.30 p.m. on 26/03/2017 and released at 3 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
11.	3689/18 08/01/2018	**Kirill Vitalyevich YAKOVENKO** 1992	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 14/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (brought to the police station at 5 p.m. on 26/03/2017 and released at 3 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	3780/18 12/01/2018	**Ivan Leonidovich VINNIKOV** 1987	Memorial Human Rights Centre Moscow	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 14/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police	4,000

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								station in excess of three hours after the offence report was compiled (brought to the police station at 8.30 p.m. on 26/03/2017 and released at 4.45 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
13.	4031/18 08/01/2018	**Ilya Pavlovich KONSTANTINOV** 1997	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 14/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
14.	4038/18 08/01/2018	**Aleksandr Sergeyevich ZAKHAROV** 1990	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 28/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (brought to the police station at 4 p.m. on 26/03/2017 and released at 1.25 a.m. on 27/03/2017);	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
15.	4039/18 08/01/2018	**Maksim Yevgenyevich DUNOV** 1972	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (brought to the police station at 4 p.m. on 26/03/2017 and released at 2.15 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	4044/18 08/01/2018	**Surazh Rustambayevich MATKURBANOV** 1994	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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17.	4055/18 08/01/2018	**Yevgeniy Vitalyevich MAKEYEV** 1970	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 12/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
18.	4065/18 08/01/2018	**Aleksey Vasilyevich PRONIN** 1973	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 24/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
19.	4845/18 17/01/2018	**Yevgeniy Igorevich NOSENKO** 1986	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
20.	4848/18 17/01/2018	**Mikhail Valeryevich TOKARSKIY** 1975	Terekhov Konstantin Ilyich Moscow	Khabarovsk	Article 20.2 § 5 of CAO	fine of RUB 15,000	Khabarovsk Regional Court 26/07/2017	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.30 p.m., brought to the police station and released after 5.p.m. on 26/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	4,000

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								administrative-offence proceedings.	
21.	4856/18 17/01/2018	**Yaroslav Yakovlevich PAVLYUKOV** 1993	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/08/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 3.30 p.m. and brought to the police station at 6 p.m. on 26/03/2017; released at 5.05 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
22.	4888/18 17/01/2018	**Kita Pavlovich MARTYANOV** 1988	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
23.	5027/18 08/01/2018	**Aleksandr Anatolyevich SHVETSKOV** 1990	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								(arrested at 3 p.m. and brought to the police station at 5.45 p.m. on 26/03/2017; released at 12.30 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	
24.	5062/18 08/01/2018	**Viktor Aleksandrovich TARASOV** 1998	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/07/2017	Art. 5 (1) - unlawful deprivation of liberty – detention at the police station in excess of three hours after the offence report was compiled (arrested at 4 p.m. and brought to the police station at 5 p.m. on 26/03/2017; released at 2.10 a.m. on 27/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Location of the public event	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
25.	5205/18 17/01/2018	**Eduard Urozoyevich GABBASOV** 1975	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 08/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
26.	5213/18 17/01/2018	**Vladislav Viktorovich PAVLOV** 1977	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 26/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
27.	5234/18 17/01/2018	**Aleksandr Stanislavovich POTASHEV** 1990	Terekhov Konstantin Ilyich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
28.	5275/18 17/01/2018	**Pavel Igorevich MARKOV** 1988	Terekhov Konstantin Ilyich Moscow	Khabarovsk	Article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 31/07/2017	Art. 5 (1) – unlawful deprivation of liberty – escorting to the police station for compiling an offence report (arrested at 2.20 p.m., brought to the police station and released after 5.p.m. on 26/03/2017); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	4,000

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								administrative-offence proceedings.	
29.	6451/18 18/01/2018	**Farid Akhmadovich ZARIFI** 1977	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 18/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
30.	6575/18 26/01/2018	**Andrey Olegovich PAVLOV** 1995	Memorial Human Rights Centre Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
31.	26994/18 23/05/2018	**Maksim Olegovich GULBIN** 1978	Antokhin Yevgeniy Vyacheslavovich Moscow	Moscow	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 28/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.